

# The Petroleum And Minerals Pipelines (Acquisition Of Right Of User In Land) Act, 1962

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The Petroleum And Minerals Pipelines (Acquisition Of Right Of User In Land) Act, 1962

UNION OF INDIA

India

The Petroleum And Minerals Pipelines (Acquisition Of Right Of User In Land) Act, 1962

Act 50 of 1962

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The Petroleum And Minerals Pipelines (Acquisition Of Right Of User In Land) Act, 1962

[16th September, 1958.]

ACT NO. 29 OF 1958

An Act to provide for the fixation of rates of wages in respect of working journalists and for matters connected therewith.

BE it enacted by Parliament in the Ninth Year of the Republic of India as follows:?

1.

Short title, extent and application.?

(1)

This Act may be called the Petroleum and Minerals Pipelines (Acquisition of Right of User in Land) Act, 1962.

(2)

It extends to the whole of India except the State of Jammu and Kashmir.

(3)

It applies in the first instance to the whole of the State of West Bengal, Bihar, Uttar Pradesh and Gujarat and the Union territory of Delhi; and the Central Government may, by notification in the Official Gazette, declare that this Act shall also apply to such other State or Union territory and with effect from such date as may be specified in that notification and thereupon provisions of this Act shall apply to that State or Union territory accordingly.

2.

Definitions.?

In this Act, unless the context otherwise requires,?

(a)

?competent authority? means any person or authority authorised by the Central Government, by notification in the Official Gazette, to perform the functions of the competent, authority under this Act and different persons or authorities may be authorised to perform all or any of the functions of the competent authority under this Act in the same area or different areas specified in the notification;

(b)

?corporation? means any body corporate established under any Central, Provincial or State Act, and includes?

(i)

a company formed and registered under the Companies Act, 1956; and

(ii)

a company formed and registered under any law relating to companies formerly in force in any part of India;

(ba)

?minerals? have the meanings assigned to them in the Mines Act, 1952 (35 of 1952), and include mineral oils and stowing sand but do not include petroleum;

(c)

?petroleum? has the same meaning as in the Petroleum Act, 1934, and includes natural gas and refinery gas;

(d)

?prescribed? means prescribed by rules made under this Act.

3.

Publication of notification for acquisition.?

(1)

Whenever it appears to the Central Government that it is necessary in the public interest that for the transport of petroleum or any mineral from one locality to another locality, pipelines may be laid by that Government or by any State Government or a corporation and that for the purpose of laying such pipelines, it is necessary to acquire the right of user in any land under which such pipelines may be laid, it may, by notification in the Official Gazette, declare its intention to acquire the right of user therein.

(2)

Every notification under sub?section (1) shall give a brief description of the land.

(3)

The competent authority shall cause the substance of the notification to be published at such places and in such manner as may be prescribed.

4.

Power to enter, survey, etc.?

On the issue of a notification under sub-section

(1)

of section 3, it shall be lawful for any person authorised by the Central Government or by the State Government or the

corporation which proposes to lay pipelines for transporting petroleum or any mineral and his servants and workmen?

(a)

to enter upon and survey and take levels of any land specified in the notification;

(b)

to dig or bore into the subsoil;

(c)

to set out the intended line or work;

(d)

to mark such levels, boundaries and line by placing marks and cutting trenches;

(e)

where otherwise survey cannot be completed and levels taken and the boundaries and line marked, to cut down and clear away any part of any standing crop, fence or jungle; and

(f)

to do all other acts necessary to ascertain whether pipelines can be laid under the land:

Provided that while exercising any power under this section, such person or any servant or workman of such person shall cause as little damage or injury as possible to such land.

5.

Hearing of objections.?

(1)

Any person interested in the land may, within twenty-one days from the date of the notification under subsection (1) of section 3, object to the laying of the pipelines under the land.

(2)

Every objection under subsection (1) shall be made to the competent authority in writing and shall set out the grounds thereof and the competent authority shall give the objector an opportunity of being heard either in person or by a legal practitioner and may, after hearing all such objections and after making such further inquiry, if any, as that authority thinks necessary, by order either allow or disallow the objections.

(3)

Any order made by the competent authority under subsection (2) shall be final.

6.

Declaration of acquisition of right of user.?

(1)

Where no objections under subsection (1) of section 5 have been made to the competent authority within the period specified therein or where the competent authority has disallowed the objection under subsection (2) of that section, the authority shall, as soon as may be, either make a report in respect of the land described in the notification under subsection (1) of section 3, or make different reports in respect of different parcels of such land, to the Central Government containing his recommendations on the objections, together with the record of the proceedings held by him, for the decision of that Government and upon receipt of such report the Central Government shall, if satisfied that such land is required for laying any pipelines for the transport of petroleum or any mineral declare, by notification in the Official Gazette, that the right of user in the land for laying the pipelines should be acquired and different declarations may be made from time to time in respect of different parcels of the land described in the notification issued under subsection (1) of section 3, irrespective of whether one report or different reports have been made by the competent authority under this section.

(2)

On the publication of the declaration under subsection (1), the right of user in the land specified therein shall vest absolutely in the Central Government free from all encumbrances.

(3)

Where in respect of any land, a notification has been issued under subsection (1) of section 3 but no declaration in respect of any portion of land covered by that notification has been published under this section within a period of one year from the date of that notification, that notification shall cease to have effect on the expiration of that period.

(3A)

No declaration in respect of any land covered by a notification issued under subsection (1) of section 3, published after

the commencement of the Petroleum Pipelines (Acquisition of Right of User in Land) Amendment Act, 1977 shall be made after the expiry of three years from the date of such publication.

(4)

Notwithstanding anything contained in sub-section (2), the Central Government may, on such terms and conditions as it may think fit to impose, direct by order in writing, that the right of user in the land for laying the pipelines shall instead of vesting in the Central Government vest, either on the date of publication of the declaration or, on such other date as may be specified in the direction in the State Government or the corporation proposing to lay the pipelines and thereunder the right of such user in the land shall, subject to the terms and conditions so imposed; vest in that State Government or corporation, as the case may be, free from all encumbrances.

7.

Central Government or State Government or Corporation to lay pipelines.?

(1)

Where the right of user in any land has vested in the Central Government or in any State Government or Corporation under section 6?

(i)

it shall be lawful for any person authorised by the Central Government or such State Government or Corporation, as the case may be, and his servant and workmen to enter upon the land and lay pipelines or to do any other act necessary for laying of pipelines:

Provided that no pipeline shall be laid under?

(a)

any land which, immediately before the date of the notification under sub-section (1) of section 3, was used for residential purposes;

(b)

any land on which there stands any permanent structure which was in existence immediately before the said date;

(c)

any land which is appurtenant to a dwelling-house; or

(d)

any land at a depth which is less than one metre from the surface; \*\*\*

(ia)

for laying pipelines for the transport of petroleum, it shall be lawful for any person authorised by the Central Government or such State Government or corporation to use such land for laying pipelines for transporting any mineral and where the right of user in any land has so vested for laying pipelines for transporting any mineral, it shall be lawful for such person to use such land for laying pipelines for transporting petroleum or any other mineral; and

(ii)

such land shall be used only for laying the pipelines and for maintaining, examining, repairing, altering or removing any such pipelines or for doing any other act necessary for any of the aforesaid purposes or for the utilisation of such pipelines.

(2)

If any dispute arises with regard to any matter referred to in paragraph (b) or paragraph (c) of the proviso to clause (i) of sub-section (1), the dispute shall be referred to the competent authority whose decision thereon shall be final.

8.

Power to enter land for inspection etc.?

For maintaining, examining, repairing, altering or removing any pipeline, or for doing any other act necessary for the utilisation of the pipelines or for the making of any inspection or measurement for any of the aforesaid purposes, any person authorised in this behalf by the Central Government, the State Government or the corporation, as the case may be, may, after giving reasonable notice to the occupier of the land under which pipeline has been laid, enter therein with such workmen and assistants as may be necessary:

Provided that, where such person is satisfied that an emergency exists, no such notice shall be necessary:

Provided further that, while exercising any powers under this section, such person or any workman or assistant of such person, shall cause as little damage or injury as possible to such land.

9.

Restrictions regarding the use of land.?

(1)

The owner or occupier of the land with respect to which a declaration has been made under sub-section (1) of section 6, shall be entitled to use the land for the purpose for which such land was put to use immediately before the date of the notification under sub-section (1) of section 3:

Provided that, such owner or occupier shall not after the declaration under sub-section (1) of section 6?

(i)

construct any building or any other structure;

(ii)

construct or excavate any tank, well, reservoir or dam; or

(iii)

plant any tree,

on the land.

(2)

The owner or occupier of the land under which any pipeline has been laid shall not do any act or permit any act to be done which will or is likely to cause any damage in any manner whatsoever to the pipeline.

(3)

Where the owner or occupier of the land with respect to which a declaration has been made under sub-section (1) of section 6,?

(a)

constructs any building or any other structure, or

(b)

constructs or excavates any well, tank, reservoir or dam, or

(c)

plants any tree,

on that land, the court of the District Judge within the local limits of whose jurisdiction such land is situate may, on an application made to it by, the competent authority and after holding such inquiry as it may deem fit, cause the building, structure, reservoir, dam or tree to be removed or the well or tank to be filled up, and the costs of such removal or filling up shall be recoverable from such owner or occupier in the same manner as if the order for the recovery of such costs were a decree made by the court.

10.

Compensation.?

(1)

Where in the exercise of the powers conferred by section 4, section 7, or section 8 by any person, any damage, loss or injury is sustained by any person interested in the land under which the pipeline is proposed to be, or is being or has been laid the Central Government, the State Government or the Corporations as the case may be, shall be liable to pay compensation to such person for such damage, loss or injury, the amount of which shall be determined by the competent authority in the first instance.

(2)

If the amount of compensation determined by the competent authority under sub-section (1) is not acceptable to either of the parties, the amount of compensation shall, on application by either of the parties to the District Judge within the limits of whose jurisdiction the land or any part thereof is situated, be determined by that District Judge.

(3)

The competent authority, or the District Judge while determining the compensation under sub-section (1) or sub-section (2), as the case may be, shall have due regard to the damage or loss sustained by any person interested in the land by reason of?

(i)

the removal of tress or standing crops, if any, on the land while exercising the powers under section 4, section 7 or section 8;

(ii)

the temporary severance of the land under which the pipeline has been laid from other lands belonging to, or in the

occupation of, such person; or

(iii)

any injury to any other property, whether movable or immovable or the earnings of such persons caused in any other manner:

Provided that in determining the compensation no account shall be taken of any structure or other improvement made in the land after the date of the notification under sub?section (1) of section 3.

(4)

Where the right of user of any land has vested in the Central Government, the State Government or the Corporation, as the case may be, shall, in addition to the compensation; if any, payable under sub?section (1), be liable to pay to the owner and to any other person whose right of enjoyment in that land has been affected in any manner whatsoever by reason of such vesting, compensation calculated at ten per cent of the market?value of that land on the date of the notification under sub?section (1) of section 3.

(5)

The market?value of the land on the said date shall be determined by the competent authority and if the value so determined by that authority is not acceptable to either of the parties, it shall, on application by either of the parties to District Judge referred to in sub?section (2), be determined by that District Judge.

(6)

The decision of the District Judge under sub?section (2) or sub?section (5) shall be final.

11.

Deposit and payment of compensation.?

(1)

The amount of compensation determined under section 10 shall deposited by the Central Government, the State Government or the Corporation, as the case may be, with the competent authority within such time and in such manner as may be prescribed.

(2)

If the amount of compensation is not deposited within the time prescribed under sub?section (1), the Central Government, the State Government or the Corporation, as the case may be, shall be liable to pay interest thereon at the rate of six per cent per annum from the date on which the compensation had to be deposited till the date of actual deposit.

(3)

As soon as may be after the compensation has been deposited under sub?section (1), the competent authority shall, on behalf of the Central Government, the State Government or the Corporation, as the case may be, pay the compensation to the persons entitled thereto.

(4)

Where several persons claim to be interested in the amount of compensation deposited under sub?section (1), the competent authority shall determine the persons who in its opinion are entitled to receive the compensation and the amount payable to each of them.

(5)

If any dispute arises as to the appointment of the compensation or any part thereof or as to the persons to whom the same or any part thereof is payable, the competent authority shall refer the dispute to the decision of the District Judge within the limits of whose jurisdiction the land or any part thereof is situated and the decision of the District Judge thereon shall be final.

12.

Competent authority to have certain powers of civil court.?

The competent authority shall have, for the purposes of this Act, all the powers of a civil court while trying a suit under the Code of Civil Procedure, 1908, in respect of the following matters, namely:?

(a)

summoning and enforcing the attendance of any person and examining him on oath;

(b)

requiring the discovery and production of any document;

(c)

reception of evidence on affidavits;

(d)

requisitioning any public record from any court or office;

(e)

issuing commission for examination of witnesses.

13.

Protection of action taken in good faith.?

(1)

No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Act or any rule or notification made or issued thereunder.

(2)

No suit or other legal proceeding shall lie against the Central Government, the competent authority or any State Government, or Corporation for any damage, loss or injury caused or likely to be caused by anything which is in good faith done or intended to be done in pursuance of this Act or any rule or notification made or issued thereunder.

14.

Bar of jurisdiction of civil court.?

Save as otherwise expressly provided in this Act, no civil court shall have jurisdiction in respect of any matter which the competent authority is empowered by or under this Act to determine and no injunction shall be granted by any court or other authority in respect of any action taken or proposed to be taken in pursuance of any power conferred by or under this Act.

15.

Penalty.?

(1)

Whoever willfully obstructs any person in doing any of the acts authorised by section 4 or section 7 or section 8 or willfully fills up, destroys, damages or displaces any trench or mark made under section 4 or willfully does any act prohibited under section 9, shall be punishable with imprisonment for a term which may extend to six months or with fine or with both.

(2)

Whoever willfully makes or causes to make any unauthorised connection with or removes, destroys, damages or displaces any pipeline laid under section 7, or willfully inserts any device to extract petroleum product or minerals from such pipeline, or willfully disrupts supplies being made through the pipeline, shall be punishable with rigorous imprisonment for a term which may extend to ten years and shall also be liable to fine.

(3)

If any person convicted of an offence under sub-section (2) is again convicted of an offence under the same provision, he shall be punishable with rigorous imprisonment for the second and for every subsequent offence for a term which shall not be less than three years but which may extend to ten years: Provided that the court may, for any adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than three years.

(4)

Whoever, with the intent to cause or knowing that he is likely to cause damage to or destruction of any pipeline laid under section 7, causes by fire, explosive substance or otherwise damage to the pipeline being used for transportation of petroleum products, crude oil or gas with the intent to commit sabotage or with the knowledge that such act is so imminently dangerous that it may in all probability cause death of any person or such bodily injury likely to cause death of any person, shall be punishable with rigorous imprisonment which shall not be less than ten years but may extend to imprisonment for life or death.

16.

Certain offence to be cognizable.?

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an offence falling under sub-sections (2), (5) and (4) of section 15 shall be deemed to be cognizable and non-bailable within the meaning of that Code.

16A.

Burden of proof in certain cases.

Where any petroleum product together with any tool, vehicle or any item used in committing any such offence under sub-section (2) or sub-section (4) of section 15 are seized under this Act in the reasonable belief that such petroleum product has been stolen from the pipeline laid under section 7, the burden of proving that they are not stolen property shall be, in case where such seizure is made from the possession of any person,-

(i)

On the person from whose possession the property was seized, and

(ii)

On the person who claims to be the owner thereof, if any person other than the person from whose possession the stolen property was seized.

16B.

Presumption regarding property.

When any proceeding taken under this Act, or in consequence of anything done under this Act, a question arises as to whether any petroleum product is the property of the corporation, the Court shall presume, unless the contrary is shown, that such petroleum product belongs to the corporation.

16C.

Provisions as to bail.-

(1)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), no person accused of an offence punishable under sub-section (4) of section 15 shall, if in custody, be released on bail or on his own bond unless-

(a)

The Public Prosecutor has been given an opportunity to oppose the application for such release; and

(b)

Where the Public Prosecutor opposes the application, the court is satisfied that there are reasonable grounds for believing that he is not guilty of such offence and that he is not likely to commit any offence while on bail.

(2)

The limitations on granting of bail specified in sub-section (1) are in addition to the limitations under the Code of Criminal Procedure, 1973 (2 of 1974) or any other law for the time being in force on granting of bail.

(3)

Nothing contained in this section shall be deemed to affect the special powers of the High Court regarding bail under section 439 of the Code of Criminal Procedure, 1973 (2 of 1974).

16D.

Section 438 of the Code of Criminal Procedure, 1973 not to apply.-

Nothing in section 438 of the Code of Criminal Procedure, 1973 (2 of 1974) shall apply in relation to any case involving the arrest of any person on an accusation of having committed an offence punishable under sub-section (4) of section 15.

17.

Power to make rules.?

(1)

The Central Government may by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters namely:?

(a)

the places at which and the manner in which the substance of the notification may be published under sub-section (3) of section 3;

(b)

the time within which and the manner in which the amount of compensation may be deposited under sub-section (1) of section 11.

(3)



Every rule made under this Act shall be laid as soon as may be after it is made before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

18.

Application of other laws not barred.?

The provisions of this Act shall be in addition to, and not in derogation of, any other law for the time being in force relating to acquisition of land.

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